

of seed potatoes or seed oats under this Act, nor shall any person be or be deemed to have been disqualified under any article in the schedule to the Local Government (Application of Enactments) Order, 1898, by reason of his having entered into a contract for such purchase.

4. All orders and regulations made, sanctions given, and things done by the Local Government Board in relation to the provision during the period in that behalf in this Act mentioned of seed potatoes by the guardians of any union shall be, and be deemed to have been valid and effectual for all purposes.

Validation of orders and proceedings of Local Government Board.

5. In this Act—

Interpretation.

The expression “the Local Government Board” means the Local Government Board for Ireland; and

The expression “the Board of Works” means the Commissioners of Public Works in Ireland.

6. This Act may be cited as the Seed Potatoes and Seed Oats Supply (Ireland) Act, 1908.

Short title.

CHAPTER 20.

An Act to make further provision with respect to the University of Durham. [1st August 1908.]

WHEREAS it is expedient to reconstitute the University of Durham, and for that purpose to appoint a statutory commission:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) There shall be a body of commissioners styled the University of Durham Commissioners, and consisting in the first instance of the following persons; namely,—

Appointment of commissioners.

His Grace Henry George Percy, Duke of Northumberland, K.G., P.C., D.C.L., F.R.S.;

The Right Reverend Archibald, Lord Bishop of Exeter, D.D., LL.D., sometime Vice-Chancellor of the University of London;

The Right Honourable Henry De Vere Vane, Baron Barnard, D.C.L.;

The Right Honourable Sir Francis Mowatt, G.C.B., P.C., LL.D., sometime Permanent Secretary of His Majesty's Treasury;

Sir William Selby Church, Bart., K.C.B., LL.D., D.C.L.,
M.D., D.Sc., sometime President of the Royal College of
Physicians of London ;

John Scott Fox, Esquire, K.C., M.A., Chancellor of the
County Palatine of Durham ;

The Rev. John Richard Magrath, D.D., Provost of Queen's
College, Oxford, sometime Vice-Chancellor of the University
of Oxford ;

Joseph Larmor, Esquire, LL.D., D.C.L., D.Sc., M.A., F.R.S.,
Lucasian Professor of Mathematics in the University of
Cambridge ;

and it shall be lawful for His Majesty to appoint a secretary to
the commissioners.

(2) If and whenever any vacancy occurs among the com-
missioners, it shall be lawful for His Majesty the King to
appoint a person to fill the vacancy ; but the name of every
person so appointed shall be laid before both Houses of Parlia-
ment within ten days after the appointment if Parliament is
then sitting, or, if not, then within ten days after the next
sitting of Parliament.

(3) The commissioners may appoint or employ such persons
as they may think necessary for the execution of their duties
under this Act, and may remove any person so appointed or
employed.

Duration and
proceedings of
commissioners.

2.—(1) The powers of the commissioners shall continue
until the end of the year one thousand nine hundred and nine,
and no longer ; but it shall be lawful for His Majesty the King,
from time to time, with the advice of His Privy Council, on
the application of the commissioners, to continue the powers of
the commissioners for such time as His Majesty thinks fit, but
not beyond the end of the year one thousand nine hundred and
eleven.

(2) The commissioner first named in this Act shall be the
chairman of the commissioners ; and, in case of his ceasing from
any cause to be a commissioner, or of his absence from any
meeting, the commissioners present at each meeting shall choose
a chairman.

(3) The powers of the commissioners may be exercised at a
meeting at which three or more commissioners are present.

(4) In case of an equality of votes on a question at a meeting,
the chairman of the meeting shall have a second or casting vote
in respect of that question.

(5) The commissioners shall have a common seal, which
shall be judicially noticed.

(6) Any act of the commissioners shall not be invalid by
reason only of any vacancy in their body ; but, if at any time,
and as long as, the number of persons acting as commissioners
is less than five, the commissioners shall discontinue the exercise
of their powers.

3.—(1) The commissioners shall make statutes regulating the constitution of the University of Durham and the powers and duties of its various authorities and constituent bodies and the disposition of its existing property in general accordance with the scheme scheduled as an appendix to this Act, but subject to any modifications of detail which may appear to them expedient after considering any representations made to them by or on behalf of any body or person directly affected, or by or on behalf of any college or institution giving university or higher education established within the counties of Northumberland, Durham, Cumberland, and Westmorland, or by or on behalf of any public education authority within the same counties.

Powers and
duties of com-
missioners.

(2) The commissioners shall take such steps as are in their opinion best adapted for facilitating the making of such representations before any such statutes are framed, provided that no costs incurred in making any such representations shall be chargeable to the University.

(3) The commissioners shall make statutes regulating the conditions upon which colleges other than those at present connected with the University may become affiliated to it and regulating the procedure by which a college may become so affiliated, and shall provide in such statutes that any college within the counties of Northumberland, Durham, Cumberland, and Westmorland the application of which for affiliation to the University may have been refused, may appeal to His Majesty in Council, and that upon such appeal His Majesty in Council shall have power to decide whether such application ought or ought not to be granted, and if His Majesty in Council shall decide that such application ought to be granted, then such college shall become affiliated to the University, and shall be entitled to appoint so many representatives on senate as His Majesty in council may determine.

(4) The commissioners shall make statutes providing that the technical college of the borough of Sunderland, as soon as it shall have satisfied such conditions as may before the passing of this Act have been specified by senate of the University as necessary to its being affiliated to the University in the faculty of science, shall thereupon become affiliated to the University in that faculty, and shall be entitled to appoint so many representatives upon senate as the commissioners may determine.

The letter addressed by senate of the University to the corporation of Sunderland under date the eighteenth day of June nineteen hundred and seven, which is scheduled in an appendix to this Act, shall be construed as embodying the conditions above referred to.

(5) Statutes made under this Act shall have effect notwithstanding anything in any Act of Parliament, charter, Order in Council, statute of the Chapter of Durham, deed, or other instrument.

Approval of
statutes.

4.—(1) When any statute has been made by the commissioners, a notice of its having been made, and of the place where copies of it can be obtained, shall be published in the London Gazette, and the statute shall be laid as soon as may be before both Houses of Parliament, and shall not be valid until it has been approved by His Majesty the King in Council.

(2) If either House of Parliament, within forty days, exclusive of any period of prorogation, after a statute has been laid before it containing any provision not already contained in Schedule I. of this Act, presents an address praying the King to withhold His assent from the statute or any part thereof, no further proceedings shall be taken on the statute or on the part thereof to which the address relates, but this provision shall be without prejudice to the making of a new statute.

(3) Any authority of the University of Durham as now existing, or any college in the University, or any other person or body directly affected by any such statute, may, within three months after the notification thereof in the London Gazette, petition His Majesty in Council to withhold his approval of the whole or any part thereof.

(4) His Majesty in Council may refer any such petition to a committee of the Privy Council, with a direction that the committee hear the petitioner personally or by counsel, and report specially to His Majesty in Council on the matter of the petition.

(5) Thereupon it shall be lawful for His Majesty, by Order in Council, either to declare his approval of the statute in whole or in part, or to signify his disapproval thereof in whole or in part, but any such disapproval shall be without prejudice to the making of a new statute.

(6) The costs of any petition under this section may be regulated by the committee to which the petition is referred. No costs incurred under this section shall be chargeable to the University.

Power to com-
missioners to
take evidence
and to make
recommendations.

5. The commissioners shall take evidence upon any of the matters hereby directed to be dealt with by them; and may, if they think fit, from time to time make a report or reports to His Majesty containing any recommendations which in their opinion ought to be made for the purpose of better enabling them to carry out any of the powers hereby entrusted to them.

Power to
amend
statutes.

6. After the expiration of the powers of the commissioners, Senate of the University shall have power to make statutes for altering or supplementing any of the statutes made by the commissioners as far as they affect the Chancellor,* Senate or Convocation of the University or any advisory board thereof or any matter at the time under his or their authority and in particular for providing for the representation on Senate of any college which may hereafter become affiliated to the University; and the authority established under this Act for the government of

the Durham division of the University shall have power to make statutes for altering or supplementing any of the statutes made by the Commissioners as far as they shall at the time affect the Durham division alone : Provided as follows :—

- (1) A statute made under this section shall be subject to the provisions of the foregoing sections, with the substitution only of Senate or of the authority aforesaid, as the case may be, for the commissioners :
- (2) Before any statute (save any affecting the Durham division alone) is made under this section the draft thereof shall be communicated to Convocation, whose opinion thereon, if returned to Senate within two months, shall be taken into consideration. In computing this period of two months any part of the months of July, August, and September, shall not be counted :
- (3) No statute made under this section shall alter the equality of representation in Senate of the Durham and the Newcastle divisions of the University, or alter any statutory provision made in direct pursuance of anything contained in Schedule I. of this Act as far as it may have particular reference to property or finance; or to the faculty of theology, or to religious instruction.

7. Nothing in this Act shall affect the mode of appointment Provisos. to any canonry of the Cathedral Church of Durham.

Nothing in this Act shall affect the memorandum or articles of association of the University of Durham College of Medicine, Newcastle-upon-Tyne, or the memorandum and articles of association of Armstrong College, Newcastle-upon-Tyne, or any rights or privileges secured to either of the said colleges thereby.

8. This Act may be cited as the University of Durham Short title. Act, 1908.

SCHEDULES.

SCHEDULE I.

Sections 3, 4,
and 6.

I.

The Lord Bishop of Durham shall be the visitor of the University, Visitor. and shall exercise in that capacity such general powers as are usually exercised by the visitor of a university as well as such particular powers as are hereby conveyed to him.

II.

Chancellor.

1. There shall henceforth be a chancellor, who shall be the head and chief officer of the University. The Very Reverend George William Kitchin, D.D., Dean of Durham, shall be the first chancellor. Succeeding chancellors shall be appointed by convocation on the nomination of Senate.

2. From the time at which the said Very Reverend George William Kitchin shall become chancellor, or a chancellor shall be appointed, the office of warden of the University shall cease, and the name of chancellor shall thenceforth take the place of the name of warden in the name of the University.

3. The chancellor, if present, shall preside over all meetings of Senate and of Convocation.

4. Senate as herein constituted shall provide for the performance of the chancellor's duties in his absence.

III.

Governors.

The office and powers of the dean and chapter of Durham as governors of the University shall cease as soon as this scheme comes into operation.

IV.

Senate.

Senate shall henceforth be constituted as follows :—

The chancellor ;

Six persons appointed from time to time by the Crown ;

The dean and the several members of the chapter of the cathedral church of Durham, and so many other persons appointed from time to time by the council of the Durham colleges as herein-after constituted as may at any time be required to raise the total number under this sub-clause to six. A time limit of not more than four years to be inserted in all appointments to Senate mentioned after this point ;

Six persons appointed from time to time by such professors, tutors, and lecturers of the Durham division of the University as are not members of the aforesaid Chapter ;

Four persons appointed from time to time by the University of Durham College of Medicine, Newcastle-upon-Tyne ;

Four persons appointed from time to time by the council of Armstrong College, Newcastle-upon-Tyne ;

Four persons appointed from time to time by the professors of Armstrong College, Newcastle-upon-Tyne ;

Eight persons appointed by Convocation, of whom four shall be graduates and past students of the Durham division of the University, and four shall be graduates and past students of the Newcastle division, two of these being past students of Armstrong College and two of the College of Medicine ;

being thirty-nine persons in all :

Provided that if at any time the constitution of the aforesaid college of medicine be so amended that its governing body shall consist wholly or partially of persons other than practitioners of medicine or surgery or teachers engaged in teaching in the college, then two of the four persons to be appointed by the college as aforesaid shall be appointed by the governing body and the other two by the principal academic board or other such academic authority existing in the college :

And provided that if at any time the said college of medicine and Armstrong College should unite to form a single institution, then the council or other principal managing authority of the united institution shall appoint six members of Senate and the professors of the united institution other six, of whom two at least shall be professors in the faculty of medicine.

V.

1. Senate shall determine the time, place, and procedure of its meetings. Powers and duties of Senate.

2. Senate shall have entire control of the real and personal property of which the University shall be or become possessed after the coming into operation of the scheme established under this Act. It shall prescribe the form and custody of the common seal of the University and shall be empowered to order the affixing thereof in respect of any matters within the scope of its powers.

3. Senate shall keep the matricula of all persons entering the University, whether in the Durham or in the Newcastle division, and shall receive all fees paid to the University for matriculation, for examination, for admission to degrees, titles, and other University distinctions, or for any other University privilege.

4. Subject to anything herein contained, Senate shall be empowered to make regulations prescribing amongst other things the conditions whether of study, examination, or otherwise, upon which candidates may be admitted to the various degrees, titles, and other University distinctions conferred by the University, provided always that religious knowledge shall continue to be a subject in the arts course; the time, place, and manner of holding University examinations; the conditions qualifying for matriculation in the University; the fees to be paid for matriculation, for examination, for admission to degrees, titles, and other distinctions, and for any other University privileges; the conditions under which fellowships, scholarships, and other prizes and emoluments may be held of the University; and the conditions under which colleges may in future be affiliated to the University. Subject to anything herein contained, Senate shall be empowered from time to time to amend, extend, or abrogate any regulation, either now existing or hereafter to be made by Senate.

5. Senate shall have the power of proposing persons to Convocation for admission to degrees.

6. Senate shall be empowered to accept and administer, as trustee, endowments for the purpose of fellowships, scholarships, exhibitions, and prizes; for the establishment of professorships, lectureships, or readerships, whether to be exercised in one or other division of the University alone or in both jointly; or for the promotion of post-graduate study or research.

7. All examiners in University examinations shall be appointed by or with the authority of Senate, and Senate shall provide their remuneration and prescribe their duties.

8. Senate shall be empowered to prescribe the duties of all officers whom it may appoint and to fix their remuneration and the terms and conditions of their appointments.

9. Senate shall be empowered to undertake the inspection and examination of schools.

10. Senate shall be empowered to prescribe academic costumes for members of the University.

Limitations of powers of Senate.

11. No regulation affecting the faculty of theology shall as far as the said faculty is affected thereby be made, amended, or abrogated, except with the consent of the Lord Bishop of Durham for the time being.

12. Except in the faculty of theology, Senate shall not require or impose any religious test unless in its capacity as trustee of a benefaction to which such a condition had been attached by its founder.

13. Without the consent of the visitor, Senate shall not abrogate the affiliation of any college now affiliated to the University.

14. Senate shall not impose any examination as a test for matriculation upon students proposing to enter the Durham division of the University without the consent of the council of the Durham colleges as herein-after constituted or upon students proposing to enter either of the colleges of the Newcastle division as herein-after defined without the consent of such college.

15. If within seven days of the passing of any resolution of Senate for the making of a regulation of the University as aforesaid or for the amendment, extension, or abrogation of an existing regulation, any twelve members of Senate shall declare their intention of appealing to Convocation against it, then such resolution shall be without effect unless and until it is confirmed by Convocation. In the event of an appeal to Convocation being so demanded, the chancellor shall call a meeting of Convocation within a reasonable limit of time to consider it, and notice of such Convocation shall be sent to every member thereof.

Provisions as regards existing regulations.

16. All existing regulations of the University and all resolutions heretofore passed by Senate shall, as far as they are not contradictory to anything herein provided, remain in force until abrogated or amended by the authority or authorities competent under these provisions to deal with the matters severally concerned: Provided that after the coming of this scheme into operation the word "warden" or "Senate" or the words "warden and Senate" in such regulations and resolutions shall be construed to mean the council of the Durham colleges as herein-after constituted when used in reference to matters authority over which has passed from the former to the latter, and shall be construed to mean Senate when used in other connections.

17. So much of the said regulations as determines the periods of residence or of study in the University or elsewhere required as qualifications for the various degrees, titles, and other distinctions of the University shall not, as far as students of the Durham division are affected thereby, be altered without the consent of the council of the Durham colleges, and, as far as students of either of the colleges of the Newcastle division are affected thereby, shall not be altered without the consent of the college concerned.

VI.

Durham division. Its governing body.

1. The council of the Durham Colleges shall be constituted as follows:—

The dean and the several members of the chapter of the cathedral church of Durham.

The master for the time being of University College.

The principal for the time being of Bishop Hatfield's Hall.

The treasurer for the time being of the Durham division of the University.

The professor for the time being of mathematics in the Durham division of the University.

The professor for the time being of Hebrew in the Durham division of the University.

The professor for the time being of music in the Durham division of the University.

The censor for the time being of unattached students in the Durham division of the University.

Three persons appointed from time to time by such professors, tutors, and lecturers of the Durham division of the University as are not ex officio members of the council for terms not exceeding three years in such manner that the term of one of them at least shall expire each year.

The head for the time being of any hall of residence established in connection with the Durham division of the University and duly licensed as such by the council of the Durham colleges, as long as the number of students residing in such hall shall not be less than twenty-five.

One person to be appointed from time to time by Senate of the University of Durham for a term not exceeding three years.

Three graduates being past students of the Durham division of the University to be appointed from time to time by Convocation of the University of Durham for a term not exceeding three years.

2. Every member of the council appointed as aforesaid for a fixed term shall be eligible for re-appointment on the expiry of the term.

3. The said council shall be a body politic and corporate under the name of the council of the Durham colleges and by that name shall have perpetual succession and a common seal with power without any further licence in mortmain to take, purchase, and hold, and also to sell, grant, exchange, demise, or otherwise dispose of, real and personal property, and to act under its seal in all matters within the scope of its powers.

4. There shall be a warden, who shall be elected from time to time by the council from amongst its own members. He shall hold office for such period and shall exercise such powers and discharge such duties as shall from time to time be prescribed by the council.

The warden shall, if present, preside over all meetings of the council.

5. The entire property both real and personal now vested in the warden, masters, and scholars of the University of Durham, including the university library, observatory, and museum, as well as Bishop Hatfield's Hall and the interest possessed by the said warden, masters, and scholars in Durham castle, shall be transferred from the said warden, masters, and scholars to the council of the Durham colleges, who shall henceforth hold the said property in trust for the purpose, amongst other things, of carrying on University education in Durham, of maintaining University College and Bishop Hatfield's Hall as residential colleges, of maintaining the aforesaid library and observatory, of establishing and maintaining fellowships, scholarships, exhibitions, bursaries, and prizes, of promoting research, of holding, should it see fit, "extension" classes, and of doing such other things of an allied nature as are generally done by university colleges :

Provided always that in the carrying out of all the above purposes due regard shall be had to the original purpose of the endowment and to its connection with the cathedral church of Durham.

And provided always that out of the income arising from the said property the said council shall annually pay to Armstrong College, New-castle-upon-Tyne, the sum of one thousand two hundred and sixty pounds and such further portion of the said income as arises from a sum of four

Continuance of present grants from income thereof.

thousand and twenty-nine pounds six shillings and ninepence at present invested in London and North Western Railway three per cent. debenture stock and charged with the payment of a grant to the said college; and shall annually pay to the University of Durham College of Medicine, Newcastle-upon-Tyne, such portion of the said income as arises from a sum of three thousand eight hundred and eighty-three pounds at present invested in the same stock as above-named and charged with the payment of a grant to the said college; the moneys so paid to be used for the lawful purposes of the said colleges respectively as they may deem fit.

Powers and
duties of the
council.

6. The said council shall be the governing body of the Durham division of the University, and the duty of providing for the teaching, residence, maintenance, and discipline of students in Durham, heretofore exercised by the warden and Senate of the University, shall henceforth belong to the council of the Durham Colleges. The said council shall exercise such powers and enjoy such privileges in the University as are herein specified, or may hereafter be granted to it by Senate or by Convocation in the exercise of any of its powers as herein contained.

7. All trusts for fellowships, scholarships, and prizes now vested in the University of Durham shall henceforth be vested in the council of the Durham colleges:

Provided that in the interpretation of any trust deed applying to any of such fellowships, scholarships, and prizes the words "University of Durham," or any words of similar effect, where used for the purpose of defining the persons who may be beneficiaries of the trust, shall be construed, unless any contrary intention appears, as applying to the Durham division of the University only.

Canonical
chairs.

8. The two canonries of Durham hitherto annexed to professorships of divinity and of Greek in the University of Durham shall remain so annexed. Appointments to these professorships shall be made, as now, by the Lord Bishop of Durham.

Academic
offices.

9. The terms and conditions on which the existing professors of divinity, Greek, mathematics, Hebrew, and music in the University hold their appointments shall not be altered without their respective consent.

10. The council of the Durham colleges shall be empowered to prescribe the duties of all professors who may be appointed hereafter to these chairs, and to determine their remuneration except as far as it is determined by particular endowment, as well as to prescribe the duties and determine the remuneration of any other professor, tutor, lecturer, or other officer appointed by the said council:

Provided that no canonical professor shall be thereby debarred from performing the ecclesiastical duties of his canonry.

11. There shall be a master of University College. The Reverend Henry Gee, D.D., at present master of University College, shall so remain, and the terms and conditions on which he holds his office shall not be changed without his consent.

12. There shall be a principal of Bishop Hatfield's Hall. Frank Byron Jevons, D.Litt., at present principal of Bishop Hatfield's Hall, shall so remain, and the terms and conditions on which he holds his office shall not be changed without his consent.

13. Appointment to all other offices in connection with University College or Bishop Hatfield's Hall shall be made by the master for the time being of University College or the principal for the time being of Bishop Hatfield's Hall as the case may be.

14. Every person who at the present time is a tutor or lecturer or other officer by appointment of and under the authority of the University of Durham, shall continue to hold the same office as by appointment of and under the authority of the council of the Durham colleges, and the terms and conditions on which he holds it shall not be changed without his consent.

15. So much of the University as is hereby placed under the control of the council of the Durham colleges shall be the Durham division of the University.

VII.

The Newcastle division of the University shall consist of the University of Durham College of Medicine, Newcastle-upon-Tyne, and Armstrong College, Newcastle-upon-Tyne, which shall severally or jointly exercise such powers and enjoy such privileges in the University as are herein specified or may hereafter be granted to them by Senate or by Convocation in the exercise of any of its powers as herein contained :

Provided that if at any time the said two colleges should unite to form a single institution, the powers until then exercised and the privileges until then enjoyed by the two institutions separately in virtue of this Act shall thenceforth jointly reside in the single institution.

VIII.

1. Professors of the University shall be—

Professors.

All existing professors of the University, as long as they shall continue to occupy their chairs.

All professors who may hereafter be appointed to the two chairs to which canonries are annexed as aforesaid as long as they shall continue to hold the said chairs.

All persons who may hereafter be appointed by Senate to professorships in pursuance of the sixth clause of Article V. hereof as long as they shall continue to hold such professorships.

2. Professors in the University shall be—

All persons appointed to be professors by the council of the Durham colleges or by the College of Medicine or by Armstrong College during their continuance in office.

IX.

There shall be a board of faculties of the University and boards of Academic the several faculties, each of which boards shall have in general such constitution, duties, and powers as the boards now established by regulations of Senate, saving only such powers as the said boards or their officers now possess of requiring, under certain circumstances, a postponement of part of the business of Senate.

X.

1. The Council of the Durham colleges, the College of Medicine and Armstrong College, and any college affiliated in pursuance of this Act, shall severally have the right of proposing for the consideration of Senate curricula of University study and schemes of University examinations based upon them, to be prescribed, if approved by Senate, as qualifications for initial degrees applicable to their own students respectively.

Provision for freedom of teaching.

2. It shall not be required of Senate that the curricula or schemes of examination prescribed by it for any degree shall be the same for all parts of the University.

3. The privilege of appending the words "in litteris antiquis" to the title of their degree shall be open only to those graduates in arts who have pursued in the Durham division of the University a curriculum which has included both Latin and Greek.

XI.

Indemnity to
Durham.

1. Senate shall annually pay to the council of the Durham colleges the sum of eight hundred and eighty pounds as an indemnity equivalent to the portion of the University's receipts from degree, examination, and Convocation fees that has hitherto been applicable to purposes now to be transferred to the said council.

Continuance of
grant from fees
to the college
of medicine.

2. Senate shall annually pay to the college of medicine the sum of four hundred pounds in lieu of the grants amounting in all to four hundred pounds hitherto paid to the said college out of the University's receipts from degree fees.

Compensation
to Durham.

3. Senate shall annually pay to the council of the Durham colleges the further sum of two hundred pounds as compensation equivalent to the value for the furtherance of purposes now to be transferred to the said council of the right of appointment to certain University offices to be retained by Senate, and after the treasurer of the University shall have ceased to be treasurer of the Durham division also, then an additional sum of one hundred pounds, making three hundred pounds in all.

Medical
scholarship.

4. Senate shall, as now, annually devote one hundred pounds to the maintenance of a scholarship or scholarships in connection with the college of medicine.

Charges on
Senate.

5. Senate shall defray the cost of holding all University examinations including the remuneration of the examiners.

6. Senate shall defray the cost of carrying out all its duties as herein prescribed as well as those of the boards of faculty and of Convocation.

Differentiation
of income.

7. Senate shall distinguish between such portion of its income (herein-after called internal income) as arises from fees paid by students of the University and such portion of its income (herein-after called external income) as may arise from other sources.

8. Payments made in pursuance of clauses 3 and 4 of this article shall be made out of external income if and so far as Senate is in possession of such income.

Claim for
deficit.

9. If in any year the internal income received from the Durham division or from the College of Medicine or from Armstrong College shall not suffice to cover the cost of examining its students as well as its proper share as herein-after defined of the payments made by Senate in pursuance of clause 6 of this article, and of the payments made in pursuance of clauses 3 and 4 also, as far as they are not met out of external income, then the council of the Durham colleges or the College of Medicine or Armstrong College as the case may be, shall make good the deficiency to Senate, and until this is done Senate shall be relieved of any obligation to examine students of the institution in question or to propose their admission to degrees.

10. For the purposes of this article "students" shall include past as well as present students, and any person examined in the faculty of medicine shall be deemed to be a student of the college of medicine.

11. The annual residue of the internal income of Senate, after the payment of the charges accruing in pursuance of clauses 1, 2, 5, and 6 of this article and of such part of the charges accruing in pursuance of clauses 3 and 4 as cannot be met out of external income, shall be apportioned amongst and paid to the council of the Durham colleges, the College of Medicine, and Armstrong College respectively, in such manner that each of these institutions shall receive from Senate as nearly as may be the amount of internal income received from its students by Senate less the costs incurred by Senate in the examination of its students and its proper share as herein-after defined of the payments made by Senate in pursuance of clause 6 of this article and of the payments made in pursuance of clauses 3 and 4 as far as they are not made out of external income. Disposal of surplus income.

The payment to the council of the Durham colleges of the sum of eight hundred and eighty pounds in pursuance of clause 1 of this article shall be deemed to be a payment to the said council on account of internal income received from students of the Durham division and the payment to the College of Medicine of four hundred pounds in pursuance of clause 2 shall be deemed to be a payment to the said college on account of internal income received from students thereof.

12. For the purposes of the foregoing clauses the term "proper share" shall in all cases be construed to mean one-third.

13. The annual residue, if any, of the external income of Senate, save any portion of it that may be subject to the provisions of particular trusts, shall be devoted to the support of teaching and research in the two divisions of the University, for which purpose it shall be apportioned amongst and paid to the council of the Durham colleges, the College of Medicine, and Armstrong College respectively, in such manner and at such times as statutes shall direct.

14. Senate shall annually cause to be audited and published all the University accounts.

XII.

1. Convocation shall be constituted as heretofore.

Convocation.

2. The time, place, and procedure of meetings of Convocation and the manner of summoning its meetings shall be determined by the chancellor. Provided that at least one meeting of Convocation shall be held in each term.

3. The conferring of degrees in the University, shall be, as heretofore, by vote of Convocation upon proposals by Senate. Ad eundem degrees shall no longer be granted, but Senate may propose members of the teaching staff in the Durham division of the University, and Armstrong College or at the College of Medicine or at colleges hereafter affiliated, for degrees without examination. Honorary degrees, the holders of which shall not have a vote in Convocation, may be conferred as heretofore on distinguished persons.

4. Convocation shall be empowered to consider and make representations to Senate or to the chancellor upon any matter affecting the interests or concerns of the University.

5. No change shall be made in the constitution of the University as settled or as subsequently modified under the provisions of this Act unless Convocation has been consulted as to the proposed change and allowed a reasonable time to express an opinion upon it.

6. No resolution of Senate for the establishment of a new faculty, degree, title, diploma, or other University distinction shall be of effect unless the proposal for the establishment of such new faculty, degree,

title, diploma, or distinction shall have been submitted to Convocation and Convocation shall have been allowed a reasonable opportunity of expressing an opinion upon it.

7. Upon appeal made in pursuance of clause fifteen of Article V. of this schedule, Convocation may veto any resolution of Senate affecting the regulations of the University.

8. The Chancellor shall be empowered to summon meetings of particular faculties at his discretion. He shall summon a meeting of a faculty within a reasonable period after the receipt by him of a written request so to do from any thirty members of the faculty. The time and place of all such meetings and the mode of procedure thereat shall be determined by the chancellor.

9. A faculty in meeting assembled shall be empowered to consider and make representations to Senate or to Convocation or to both upon any matter affecting the interests or concerns of the faculty.

XIII.

Treasurer.

1. Frederick William Ritson, M.A., at present treasurer of the University, shall remain treasurer of the University and of the Durham division subject to such terms and conditions as now govern his office, and provided that the said terms and conditions may at any time be altered by joint consent of the treasurer and of Senate or by joint consent of the treasurer and the council of the Durham colleges as the case may be. Subject to any alteration made as above provided, one hundred pounds of the salary of the said Frederick William Ritson shall be paid by Senate and the remainder by the council of the Durham colleges.

2. Senate shall provide for the custody of the property and moneys of the University and the council of the Durham colleges for the custody of the property and moneys of the Durham division after the said Frederick William Ritson has ceased to be treasurer.

XIV.

Registrar and registry.

1. There shall be a Registrar of the University.

2. Walter Kercheval Hilton, M.A., at present registrar of the University, shall remain registrar subject to such terms and conditions as now govern his office and provided that the said terms and conditions may at any time be altered by joint consent of the registrar and of Senate. Subsequent registrars shall be appointed by Senate, who shall prescribe the terms, conditions, and tenure of their office.

3. The office of the registrar shall be in the city of Durham.

Section 3.

SCHEDULE II.

The LETTER from SENATE of the UNIVERSITY of DURHAM
to the CORPORATION of SUNDERLAND,
under date the eighteenth of June nineteen hundred and seven,
referred to in section three (4) of this Act.

GENTLEMEN,

University of Durham,
June 18th, 1907.

In reference to your application of the 18th ult. for the affiliation of the Sunderland Technical College to the University of Durham, I am desired by Senate to inform you that the Committee appointed to consider

the application, and to inspect the buildings and equipment of the college in connection with it, have reported to Senate, and that Senate has adopted the conclusions of the report, which are in the following terms :—

“The committee are of opinion that there is ample opportunity for the development of University teaching in Sunderland, and a prospect of it actually taking place in a near future, and that the technical college is well adapted to serve as a nucleus. At present, however, the college is not in a position to undertake the curriculum the University requires in pure science, as it offers no teaching in geology, zoology, or botany. The Committee is of opinion that the college would be competent to undertake the University curriculum in engineering and electrical engineering if the following extension of its present resources could be provided :—

“A more extensive physical laboratory, more fully provided for the teaching of branches of physics other than electricity.

“A separate lecturer at the head of the department of electrical engineering, who should by preference be a practising electrical engineer.

“An extension of the laboratory accommodation and appliances for teaching electrical engineering.

“A more adequate engineering laboratory, provided with the necessary steam machinery.”

I am further desired to inform you that it will give Senate sincere pleasure to hear further from you upon the matter, should you see your way to extend the resources of the college to meet the requirements which the University regards as essential for University teaching in engineering and electrical engineering ; or further so to extend the scope of the education carried on in your college as to cover the University curriculum in pure science, or in any of the other branches of applied science recognised by the University as qualifying for degrees.

Faithfully yours,

(Signed) W. K. HILTON,
(Registrar).

CHAPTER 21.

An Act to amend the Law relating to the time for an Appeal from the Decision of a Revising Barrister, and matters consequential thereon. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Any person intending to prosecute an appeal under the Parliamentary Voters Registration Act, 1843, from or in respect of the decision of a revising barrister shall, on or before the twenty-sixth day of October next after the conclusion of the revision, transmit to the Master in the Crown Office the statement made by the revising barrister in pursuance of that Act, and also deliver or send by post a notice signed by him to the

Alteration of
time for notice
of appeal from
revising barris-
ter's decision.
6 & 7 Vict. c. 18.